

SUPREME COURT OF PAKISTAN
(Review / Appellate Jurisdiction)

Present:

Mr. Justice Jamal Khan Mandokhail
Mr. Justice Shahid Waheed
Mr. Justice Muhammad Shafi Siddiqui

Criminal Review Petition No. 56 of 2022

[For review of the order dated 03.08.2022 passed by this Court]

IN

Criminal Original Petition No. 13 of 2022

Javed Akhtar (deceased) through his LRs.

... *Petitioners*

Versus

Zeenia Satti and others.

... *Respondents*

AND

Civil Appeals No. 428 to 430 of 2021

[On appeal from judgment/order dated 29.01.2021 of the Islamabad High Court, Islamabad passed in R.F.A.Nos.335, 336 and 342/20]

Abdul Karim Niazi.

[In all cases]

... *Appellant*

Versus

Mrs. Zeenia Satti and another.

[In all cases]

... *Respondents*

In Crl.R.P.56/22:

For the Petitioners:

Syed Asghar Hussain Sabzwari, Sr. ASC.
Syed Mastan Ali Shah, ASC.

Respondent No.1:

Mrs. Zeenia Satti (In-person)

For Respondents No.2 to 4:

Ms. Misbah Gulnar Sharif, ASC.
Mr. Munir Ahmed, Mr. Malik Nusrat,
Mr. Bashir, Mr. Hafeez and
Mr. Ashraf, all departmental
representatives of CDA.

In C.As.428/21 etc.

For the Appellants:

Mr. Muhammad Ilyas Sheikh, ASC.
a/w Mr. Naeem Arif, AHC.
a/w Abdul Karim Niazi, (Appellant).

Respondent No. 1: Ms. Zeenia Satti (In-person)

For Respondent No. 2: Ms. Misbah Gulnar Sharif, ASC.
Mr. Munir Ahmed, Mr. Malik Nusrat,
Mr. Bashir, Mr. Hafeez and
Mr. Ashraf, all departmental
representatives of CDA.

Date of Hearing: 06.03.2026

JUDGMENT

Muhammad Shafi Siddiqui, J.

Criminal Review Petition No. 56 of 2022: It is essential to decide first the instant Criminal Review Petition as this would streamline the facts involved and law applicable thereon.

2. We have heard all learned counsel as well as Mrs. Zeenia Satti who appeared in-person and also perused the record.

3. The instant Criminal Review Petition before us is in respect of an order dated 03.08.2022 passed by this Court in Criminal Original Petition No.13 of 2022. The Criminal Original Petition was filed before this Court as it was felt by Mrs. Zeenia Satti that the order dated 07.02.2020 (passed in CPLA No.1192/2018) was not complied to her benefit.

4. Brief facts which are very essential for proper adjudication of this review petition are as under:

FACTS AND PROCEEDINGS

5. An agreement dated 25.01.1988 entered into between Brigadier retired Muhammad Sadiq Khan (**seller**) and Javed Akhtar (**purchaser**) for the sale of 533 square yards plot (subject plot), which is a “carved-out” portion of a 1,333 Square yards bearing plot No.267, Street No.22, Sector E-7,

Islamabad, (original plot) for a total sale consideration of Rs.10,00,000/-. Later on, a dispute with regard to the sale agreement arose between them. Consequently, the purchaser filed a suit for performance of the said agreement against the seller on 11.05.1988, which was decreed on 20.12.1993 in terms that the amount paid by the purchaser be returned to him, and the suit for performance was declined.

6. Being aggrieved of the said decree, both the seller and the purchaser filed their respective appeals before the Lahore High Court, Rawalpindi Bench; (RFA No.56/1994 filed on 12.03.1994 by the purchaser and RFA No.49/1994 filed by the seller on 03.02.1994). During the pendency of these appeals, the seller died on 13.10.1995 (per statement of Mrs. Zeenia Satti dated 18.05.2022 in Criminal Misc. Appeal No.17/2022), whereas, the purchaser died in the year 2002. The legal heirs of both the deceased were made parties to the proceedings, which included Mrs. Zeenia Satti. The Lahore High Court, Rawalpindi Bench, *vide* order dated 03.06.2005, sent the matters to the District Judge, Islamabad, on account of pecuniary jurisdiction for further proceedings. The appeal filed by the purchaser was allowed, and a decree for performance of the said agreement was granted, whereas, the appeal filed by seller was dismissed *vide* a consolidated judgment dated 27.01.2009 passed by the Additional District Judge, Islamabad.

7. Raja Habib, being son and one of the legal heirs of seller, filed a Regular Second Appeal, (RSA No.04/2009) before the Islamabad High Court, Islamabad, which was dismissed *vide* judgment dated 15.01.2018.

8. Abdul Karim Niazi (grandson of seller), and son of Mst. Sumera Satti, who was the daughter of the seller filed Civil Petition before the Supreme Court [CPLA No.1192/2018] against the judgment of the High Court dated 15.01.2018, wherein leave was declined on 07.02.2020. Mrs. Zeenia Satti,

being the daughter of the seller and party to these proceedings, aware of the litigations; however, she did not herself prefer any appeal either before the Islamabad High Court Islamabad or CPLA before this Court.

9. Later on, Mrs. Zeenia Satti, filed a Criminal Original Petition for the alleged violation of order dated 07.02.2020, which was initially objected to by the office of this Court. Against the said objection, she filed Criminal Misc. Appeal No.17 of 2022, which was heard in chambers and was allowed on 18.05.2022, and Criminal Original Petition No.13 of 2022 was registered.

10. The Supreme Court, on 03.08.2022 (order under review), reiterated that earlier, on 07.07.2022, this Court had directed the CDA to implement the order of the Supreme Court dated 07.02.2020 passed in CPLA No.1192/2018 and to handover the plot to Mrs. Zeenia Satti and to file a report within 10 days, seemingly in respect of the same portion for which the decree for performance was upheld by this Court when leave was refused. Against the said order of the Supreme Court dated 03.08.2022, the legal heirs of deceased Javed Akhtar filed the instant Criminal Review Petition No.56 of 2022, which is before the Court.

11. We have enquired from Mrs. Zeenia Satti as to which part of the order dated 07.02.2020 (leave refusing order) observed for the “handing over” of possession of subject plot to her; however, she was unable to point out any such direction in the said order.

MRS. ZEENIA SATTI'S INSISTENCE FOR EXECUTION OF THE ORDER DATED 07.02.2020 BY THIS COURT INSTEAD OF EXECUTING COURT

12. Following the said order of this Court dated 07.02.2020, the Executing Court proceeded with the matter and through CDA processed the Survey Expert Report and Building Expert Report both dated 20.11.2020 of the

subject plot, however, the said reports were objected to by Mrs. Zeenia Satti and legal heirs of Javed Akhtar before the Executing Court, but the Executing Court vide order dated 24.09.2021 rejected the objections. Thereafter, Mrs. Zeenia Satti, approached to this Court directly by filing a contempt application (1st contempt application) claiming violation of order dated 07.02.2020, which was objected by the office, against which chamber appeal was preferred, which was heard on 18.11.2021 and it was ordered that the same be fixed in Court. On 16.11.2021, the office objections were removed and Criminal Original Petition was registered as (Criminal Original Petition No.33/2021) and was heard the same day. This Court by consent of the parties, set aside the order dated 24.09.2021 passed by the Executing Court and reiterated that the "order dated 07.02.2020" passed by this Court be implemented. Ultimately, on 11.12.2021 the Executing Court after redetermination of the matter and in view of the orders passed by this Court complied the decree in favour of the legal heirs of Javed Akhtar and directed that report in this regard be sent to the Supreme Court through its Registrar.

13. Thereafter, Mrs. Zeenia Satti filed another contempt application (2nd contempt application) before this Court, which was again objected by the office, and against such objections she filed chamber appeal (Criminal Misc. Appeal No.17/2022), which was allowed on 18.05.2022 and the Criminal Original Petition was ordered to be registered as stated above. In compliance of the said order, the office registered the Petition (Criminal Original Petition No.13/2022), wherein certain orders (including 03.08.2022) were passed by this Court which are reproduced later in the judgment below.

Feeling aggrieved of the said order, the present Criminal Review Petition has been filed, as stated above.

OVERVIEW OF CRUCIAL ORDERS OF THIS COURT

14. It is useful to have an overview of the orders passed in CPLA No.1192/2018 whereby leave was refused on 07.02.2020, thereby affirming the decree of performance. Later in the order, after refusing leave, some directions for its implementation were passed. Up until the refusal of leave, in terms of paragraph 2 below, no observation regarding the alleged claim of gift was made as disclosed by Mrs. Zeenia Satti.

15. For convenience, the relevant orders dated 07.02.2020 passed in CPLA No.1192/2018 and orders dated 07.07.2022 and 03.08.2022, both passed in Criminal Original Petition No.56/2022, are reproduced as under, respectively:

First Order**Order dated 07.02.2020 in CPLA No.1192/2018**

"The learned counsel for the petitioner, respondent No.1 (legal heirs of Javed Akhtar) and Respondent No.2-Capital Development Authority have been heard. Respondent No.8 Mrs. Zeenia Satti, who has appeared in-person has also been heard. The controversy between the parties relates to a plot of land measuring 1333 sq.yds bearing Plot No.267, Street No.22, Sector E-7, Islamabad. Respondent No.1 Javed Akhtar (deceased) had filed a suit for specific performance on the basis of an agreement to sell dated 25.01.1988 claiming that the original owner namely Brig. (Retd.) Muhammad Sadiq Khan had agreed to sell a portion of the said plot measuring 533 sq.yds in his favour for a total sale consideration of Rs.10,00,000/-. A sum of Rs.3,00,000/- was paid as earnest money at the time of execution of the agreement to sell. An additional sum of Rs.1,00,000/- was paid on 04.02.1988 through cheque. The remaining amount of Rs.6,00,000/- was payable within 90 days i.e. 25.04.1988 and on clearance of total dues of House Building Finance Corporation. Javed Akhtar alleged that he was ready and willing to perform his part of the contract and had offered the balance sale consideration to Brig. (Retd.) Muhammad Sadiq Khan, but he had refused to transfer the property to him as per the agreement. This necessitated filing of the suit. The matter was contested. The Trial Court came to the conclusion that execution of the agreement was admitted so was payment in the sum of Rs.4,00,000/- which was paid by Javed Akhtar, and received by Brig. (Retd.) Muhammad Sadiq Khan. However, for reasons recorded in the judgment of the Trial Court it declined to grant specific relief and instead decreed the suit for recovery of Rs.8,24,000/-. The afore-noted judgment of the Trial Court was appealed against. The First Appellate Court over turned the judgment and decreed the suit for specific performance. In second, appeal the High Court upheld the judgment of the First Appellate Court. The learned counsel for the petitioner, who is one of the children of Sumera Satti, who was of one the legal heirs of the late Brig. Muhammad Sadiq Khan has

sought leave to appeal on the ground that the first as well as the second Appellate Court did not consider the fact that respondent No.1 Javed Akhtar had withheld payment of the balance amount for a considerable period of time and actually deposited the balance amount as late by 2009 while the agreement was executed in 1988. He maintains that on account of such laps of time the value of the property had escalated manifold which matter was duly considered by the lower fora and needs to rectify by this Court.

2. We have however, noticed from record that in order to show his bona fides the respondent had arranged a pay order in the sum of balance amount of Rs.600,000/- before expiry of the period granted in the agreement to sell for execution of the sale deed. A representative of the concerned Bank appeared as witness and confirmed the fact that such pay order had indeed been prepared on the request of Javed Akhtar, before filing of the suit. This fact addresses the issue of the willingness and readiness of Javed Akhtar to pay the balance amount and execute the sale deed which Brig. (Retd.) Muhammad Sadiq Khan did not do, leading to such

prolonged litigation. It was on the basis of this and other related facts and circumstances that the first and the second Appellate Court came to the conclusion that the discretionary relief by way of specific performance of the contract should have been exercised in favour of Javed Akhtar. On reappraisal of the entire record, we have also come to the same conclusion and, therefore, do not find any reason to interfere with the same. We are, therefore, not inclined to grant leave to appeal to the petitioner.

Leave was refused

3. During the course of proceedings, the following additional facts have been brought to our notice by Mrs. Zeenia Satti (Respondent No.8) who is also one of the daughters of the late Brig. Muhammad Sadiq Khan:

- i. A part of Plot No.267, Street No.22, Sector E-7, Islamabad measuring 501.11 sq.yds had been separated by Brig. (Retd.) Muhammad Sadiq Khan and transferred to his youngest daughter namely Mrs. Zeenia Satti as far back as 1995. Such transfer was duly recorded in the land records of Capital Development Authority and is statedly still in her name;
- ii. A building is stated to have been constructed on the plot a part or whole of which may fall within the area which would fall to the ownership of Javed Akhtar;
- iii. The whole or a portion of such building is statedly in possession of the petitioner. It is claimed by the petitioner that the said property/portion thereof was gifted by Mrs. Zeenia Satti in his favour. This is vehemently denied by the Zeenia Satti. However, such gift, its authenticity and validity and matters related thereto are subject matter of the litigation which is pending before Courts of competent jurisdiction. We do not wish to comment on the same lest such comments should prejudice the case of either side.

4. At present the controversy before us is limited to the question which portion of the plot was decreed in favour of Javed Akhtar and which specific portion falls to the share of Mrs. Zeenia Satti. This is without prejudice to and notwithstanding the various pleas taken by the parties before the competent fora which will be decided by such fora after recording evidence and hearing all parties in accordance with law. To the above limited extent of identifying respective portions to be given to Javed Akhtar (deceased) and Mrs. Zeenia Satti, the controversy is relatively simple which can be resolved in the following manner:

- i) The matter shall be taken up before the Executing Court, it shall direct Capital Development Authority to appoint surveyors and other

experts, to visit the site after giving notice to all concerned parties alongwith the relevant record. On the basis of the record, they shall demarcate the portion which was statedly transferred by Brig. (Retd.) Muhammad Sadiq Khan in favour of Mrs. Zeenia Satti;

- ii) They shall also specifically demarcate the portion of the plot which is the subject matter of the judgment and decree in favour of Javed Akhtar. On such demarcation the respondent Javed Akhtar / his legal heirs shall be entitled to title ownership and possession of the said portion;
- iii) In case, a building has been constructed on the portion which falls to the share of Javed Akhtar, representatives/experts of CDA shall measure the constructed area and submit a comprehensive report before the Executing Court determining the value which shall enable the Executing Court to pass an order regarding the current value of such construction.
- iv) On determination of the current value of the construction (if any), by the Executing Court) Respondent No.1 Javed Akhtar / his legal heirs shall within 30 days of such determination deposit the said amount with the Executing Court.
- v) The amount so deposited shall be invested by the Executing Court in a profit bearing scheme of a scheduled Bank paying the best rate of mark-up/profit amongst scheduled Banks. On finalization of the pending litigation between the legal heirs Brig. (Retd.) Muhammad Sadiq Khan or his children, the Executing Court shall release the amount so deposited by respondent No.1 together with profit/mark-up accrued thereon to the parties found entitled to the same in accordance with their respective shares;
- vi) In case, after demarcation and allocation of 501.11 sq.yds in favour of Mrs. Zeenia Satti and 501.11 sq.yds in favour of Javed Akhtar, any excess land is available, the same shall vest in all legal heirs of Brig. (Retd.) Muhammad Sadiq Khan.

5. This petition is accordingly disposed of in the afore-noted above terms.

CIVIL MISC. APPLICATIONS NO.3304 OF 2018 AND CIVIL MISC. APPLICATIONS NO.9270 OF 2019 AND CIVIL MISC. APPLICATIONS NO.10614 OF 2019:

All the Civil Miscellaneous applications are accordingly disposed of.”

Second Order

Order dated 07.07.2022

“Mrs. Zeenia Satti, petitioner, present in person, seeks time to file an application along with relevant material in order to substantiate the assertions she has made orally before this Court.

2. We have asked the learned counsel for the CDA if the order of this Court dated 07.02.2020 has been complied with. She submits that as far as demarcation is concerned, the matter had been marked to

the land department and she is not aware whether it has been complied with or not. She, however, undertakes that a compliance report will be filed within a period of two weeks from today positively showing faithful compliance of every aspect of the order that was passed by this Court in its letter and spirit. Non-implementation of the order of this Court shall entail legal consequences for functionaries of CDA. Let the needful be done and the matter shall be listed for hearing after two weeks."

Third Order

Order dated 03.08.2022

"Vide order dated 07.07.2022 passed by this Court, the Capital Development Authority ("CDA") was directed to implement the earlier order dated 07.02.2020 to the extent that Property No.267-A measuring 501.11 square yards to be demarcated and possession be delivered to Mrs. Zeenia Satti. We are highly disappointed to note that CDA has not implemented the order of this Court in its letter and spirit and the petitioner (Zeenia Satti) is being made to run from pillar to post for enforcement of her right that has categorically been recognized by this Court. One final opportunity is granted to CDA not only to demark the property in question but also arrange delivery of possession of same to its owner namely Mrs. Zeenia Satti within seven days from today. The learned counsel for CDA has on instructions undertaken to do the same. It has been made clear to her that non implementation of the order would attract serious consequences including but not limited to proceedings under Article 204 of the Constitution read with Contempt of Court Ordinance, 2003 against officials/functionaries of CDA. Let a report in this regard be filed before this Court under the signatures of Chairman, CDA within 10 days. The matter shall be relisted after two weeks."

RATIOCINATION OF ORDERS

16. The ratiocination of orders is such that the decree of performance has attained finality and ought to have been implemented in letter and spirit, as envisaged in the order dated 07.02.2020. Leave was refused in para 2 of the aforesaid order dated 07.02.2020 and that by itself was sufficient as far as the "subject matter" of the said CPLA No.1192/2018 is concerned, as the alleged gift was never the subject matter throughout. Only in Para 4 of the order, this Court, instead of the Executing Court, considered identifying the portions at the insistence of Mrs. Zeenia Satti i.e., which portion of the plot was decreed in favour of the buyer and which portion falls to the share of Mrs. Zeenia Satti, if at all they are different.

17. A focused perusal of order dated 07.07.2022 of Criminal Original Petition reveals, in the first 1st paragraph that Mrs. Zeenia Satti sought time to substantiate her assertion, and thus, in paragraph 2 of the said order, all that could have been said was in respect of compliance of decree of performance, as the relevant material to support Mrs. Zeenia Satti's case has not even placed on record. Keeping this in mind, she still had to make out a case within four corners of the order dated 07.02.2020 to initiate contempt proceedings, as she did not point out any violation of the main order dated 07.02.2020.

18. The entire plot, before the Court, was identified as plot No. 267, Street No.22, Sector E-7, Islamabad, out of which a portion measuring 533 square yards, (later reduced to 433 square yards by the Appellate Court), in pursuance of the sale agreement, was decreed in favour of Respondent No.1 (purchaser). Mrs. Zeenia Satti, however, as stated above preferred a Criminal Original Petition No.13/2022 on the strength that a portion of the said plot, measuring 501.11 square yards, was gifted to her by her father in the year 1995. This was the time when appeals in the performance suits were pending, and Mrs. Zeenia Satti was made a contesting party to the proceedings. Her alleged claim of gift is in respect of the same portion which formed part of the agreement of sale entered into between the respondent and the alleged donor of the alleged gift (Brigadier retired Muhammad Sadiq Khan). When Mrs. Zeenia Satti contested the appeal before first appellate court, she did not assert the gift, and the claim of gift was never adjudicated upon in respect of the subject plot. Thus, the pending litigation regarding the carved-out portion, which was decreed in favour of the buyer, was within the knowledge of all legal heirs, including Mrs. Zeenia Satti.

19. After the decision of the Trial Court in the year 1993, appeals were filed in the year 1994, and during pendency, the subject plot was numbered; as per the record of CDA, on an application of Brigadier Muhammad Sadiq (seller), the plot was subdivided in two portions on 28.12.1994:

267-A, F-7 measuring 732.22 sq. yards (Eastern portion)

267-B, F-7 measuring 501.11 sq. yards (Western portion)

20. The letter of CDA dated 28.12.1994 further disclosed that, on account of such subdivision, 267-B (western portion) had fallen vacant and was required to be constructed within the permitted period (being an independent plot then).

21. During the pendency of appeal, and having the knowledge of the pending litigation concerning performance, (*lis pendens*), the subject property is claimed to have changed hands on 27.03.1995, as per record of CDA, thereby violating section 52 of the Transfer of Property Act. The decree for performance however, notwithstanding above binds all subsequent buyers/transferees/donees etc, having knowledge of the previous agreement and/or litigation. The provisions of section 27 of the Specific Relief Act would also support the decree-holder's claim that a subsequent transferee/buyer and/or beneficiary having knowledge of earlier litigation, including effect of *lis pendens*, would defeat such disguised transactions and transfers, if any.

22. The numbers i.e. 267-A and 267-B were again re-designated on the application/request of Zeenia Satti, which letter she wrote on 16.04.1997 to Capital Development Authority. The re-designated numbers are as under:

Plot No.267-B Eastern Portion 732.22 sq. yards

Plot No.267-A Western Portion 501.11 sq. yards

Obviously, the plots were given same numerical number but the alphabetical suffix were swapped.

23. It was then this western portion which was assigned 267-A, for which the plan was approved, being obviously a vacant plot (identified in the agreement). The approval for construction was followed by application dated 29.10.1997 for water connection in respect of plot now identified as Plot No.267-A. Completion certificate was then issued on 27.02.2000 in respect of Plot No.267-A (subject plot of performance suit). This CDA record was not disclosed in the pending litigation and was kept secret (though recently discovered via a concise statement), despite the parties being part of the proceedings.

24. The departmental exercise for “performance of decree” continued separately, and the Capital Development Authority “transferred” the subject plot, in compliance of decree in favour of legal heirs of Javed Akhtar, the decree holder, subject to decision of CPLA No.1192/2018. This CPLA was dismissed, as stated above, on 07.02.2020, yet on 11.08.2022, CDA, on the order under review withdrew the aforesaid “transfer letter” issued by CDA to Javed Akhtar, which was issued in compliance with the decree affirmed by this Court. Letter dated 11.08.2022 is reproduced below:

“CAPITAL DEVELOPMENT AUTHORITY
(ESTATE MANAGEMENT-I DIRECTORATE)

No. CDA/EM-E-7 (267-A)/95/3770 Islamabad, 11th August, 2022.

**To: Mrs Zeenia Satti Daughter of
Muhammad Sadiq
House No. 267-A,
Sector E-7, ISLAMABAD.**

Subject: WITHDRAWAL OF CONDITIONAL TRANSFER LETTER OF HOUSE NO. 267-A, SECTOR E-7, ISLAMABAD DATED 01-08-2019 AND RETENTION OF TRANSFER LETTER DATED 27-03-1995 IN COMPLIANCE OF DIRECTIONS OF THE HONORABLE SUPREME COURT OF PAKISTAN

In compliance with the directions of the Honorable Supreme Court of Pakistan vide order dated 07-02-2020, 07-07-2022 and 03-08-2022 passed in Criminal Original Petition 13 of 2022 in CA No. 428-429-430/2021; the conditional transfer letter No. CDA/EM-E-7 (267-A)/95/16692 to 16697 dated 01-08-2019 of House No. 267-A, Sector E-7, Islamabad, measuring 501.11 square yards issued in favour of Javed Akhtar s/o S.M. Ishaq (deceased) through his legal heirs stands withdrawn.

2. The allotment of House No. 267-A, Sector E-7, Islamabad, measuring 501.11 square yards now stands in the name of Mrs. Zeenia Satti Daughter of Muhammad Sadiq with all rights and liabilities.

3. Other terms and conditions of allotment will remain the same.

sd/-
Dy Director Estate Management-I
11/08/22"

25. Mrs. Zeenia Satti brought to the notice of the Court about her alleged gift for the first time on 07.02.2020 despite contesting appeals before District Judge and High Court. Para 3 Sub Para (ii) of order dated 07.02.2020 disclosed that:

"ii. A building is stated to have been constructed on the plot a part or whole of which may fall within the area which would fall to the ownership of Javed Akhtar."

One wonders how the said portion could be asked to be handed over to another individual, namely, Mrs. Zeenia Satti judgment-debtor in the execution of such decree. The sub para iii of para 3 of the order dated 07.02.2020 further suggests, as under:

"iii. The whole or a portion of such building is statedly in possession of the petitioner. It is claimed by the petitioner that the said property/portion thereof was gifted by Mrs. Zeenia Satti in his favour. This is vehemently denied by the Zeenia Satti. However, such gift, its authenticity and validity and matters related thereto are subject matter of the litigation which is pending before Courts of competent jurisdiction. We do not wish to comment on the same lest such comments should prejudice the case of either side."

In the above order passed in CPLA No.1192/2018, the petitioner was another grandson of Muhammad Sadiq Khan (seller) who claimed a gift of the subject plot via Mrs. Zeenia Satti.

Mrs. Zeenia Satti had allegedly gifted said portion to her nephew (regarding which performance decree was granted) to which she herself had no clear title, which he contested unsuccessfully (being disputed gift) upto High Court and separate Appeals were filed and fixed / tagged with this case, to be adjudged.

26. It was not realised at the time of passing the order dated 03.08.2022 that the decreed portion was the same which was “alleged” to have been gifted, and the gift claim could have been an illusion to eclipse the fruits of the performance decree, as is seen now. It is unsuccessfully claimed that the gifted portion is different; the secret change of alphabetical suffix to the plot number will not vitiate the adjudicated proceedings of four courts. This observation in the order dated 03.08.2022, of handing over possession of carved out plot to Mrs. Zeenia Satti is apparently an error on the face of order dated 07.02.2020 as it not only violates the performance decree of this Court but also the order dated 07.02.2020 dismissing leave petition. Possession is nowhere in the main order, of which violation was claimed via contempt application

27. Nonetheless, the Court observed in the main order dated 07.02.2020 that this exercise is without prejudice to, and notwithstanding, the various pleas taken by the parties before the competent forum which will be decided by such fora after recording evidence and hearing all parties in accordance with law. Thus, to the extent of the wisdom laid down in para 4 for the purposes of identifying respective portions, to be given to legal heirs of Javed Akhtar (buyer) the controversy is relatively simple and could have been

resolved in the manner provided in clauses i to iv of para 4 of the order and no occasion warranted handing over of possession to any one, except by the executing court. The CDA had already completed the exercise to comply decree of performance and the executing court overviewed the compliance. The said transfer order was wrongly and contumaciously cancelled. The executing court did pass orders after assuming jurisdiction and there is no challenge to it, however, Mrs. Zeenia Satti jumped to file Criminal Original Petition No.13/2022 in respect of an order which approved the claim of Javed Akhtar, the buyer.

28. Thus, under no stretch of imagination, any part of the order dated 07.02.2020 could be said to have observed that, if the gifted portion turned out to be the “performance decree” portion, even then it may be handed over to Zeenia Satti. Zeenia Satti had consciously undertaken such exercise of transfer of subject property before CDA and thus had to sail and sink with the conclusion of litigation in suit for performance.

29. It all erupted when in Criminal Original Petition No.13 of 2022 an initial order was passed on 07.07.2022 when the counsel for the CDA was asked as to whether the order dated 07.02.2020 has been complied with, which order was followed by an order dated 03.08.2022 whereby the Court observed as under:-

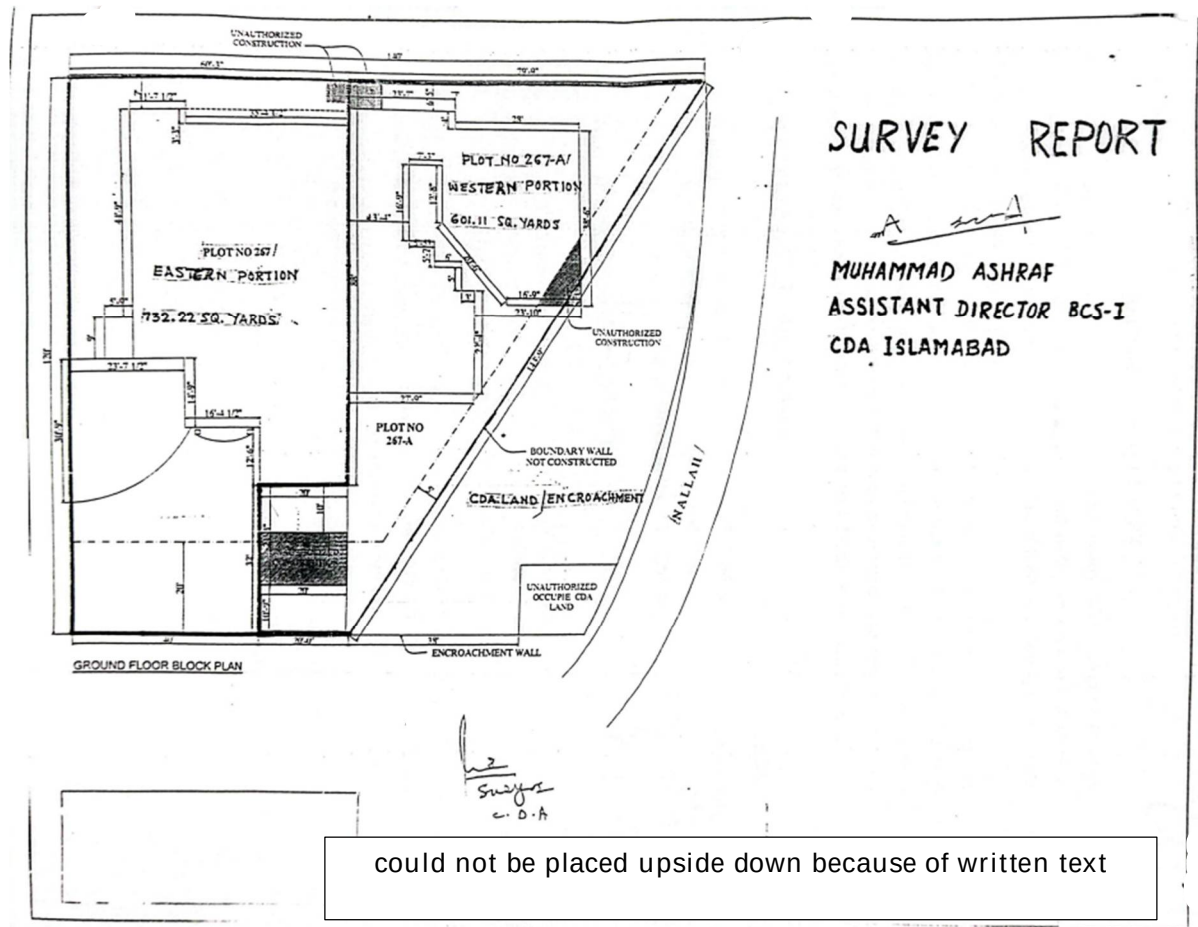
“Vide order dated 07.07.2022 passed by this Court, the Capital Development Authority (“CDA”) was directed to implement the earlier order dated 07.02.2020 to the extent that Property No.267-A measuring 501.11 square yards to be demarcated and possession be delivered to Mrs. Zeenia Satti. We are highly disappointed to note that CDA has not implemented the order of this Court in its letter and spirit and the petitioner (Zeenia Satti) is being made to run from pillar to post for enforcement of her right that has categorically been recognized by this Court. One final opportunity is granted to CDA not only to demark the property in question but also arrange delivery of possession of same to its owner namely Mrs. Zeenia Satti within seven days from today. The learned counsel for CDA has on instructions undertaken to do the same. It has been made clear to her that non implementation

of the order would attract serious consequences including but not limited to proceedings under Article 204 of the Constitution read with Contempt of Court Ordinance, 2003 against officials/functionaries of CDA. Let a report in this regard be filed before this Court under the signatures of Chairman, CDA within 10 days. The matter shall be relisted after two weeks."

30. CDA had already issued a letter of ownership of 267-A, (which had been carved-out from the main plot 267), to Javed Akhtar and his legal heirs to follow. It was on the orders of this Court now "under review" passed in Criminal Original Petition, that the same was surreptitiously reversed in favour of Mrs. Zeenia Satti.

31. We do not find any reason to entertain the contempt application or to compel CDA to hand over such portion, which actually is a portion falling as part of the decree for performance. On the contrary, para 4 of the order dated 07.02.2020 enquired about the identity of two alleged portions of plot 267 and Mrs. Zeenia Satti misled this Court.

32. The CDA was entrusted with this task by virtue of para 4(i) of the said order and it surveyed exactly as above that the portion regarding which the agreement was entered into is the one "currently" assigned number 267-A for which the ownership letter too was issued to Javed Akhtar / his legal heirs, earlier in compliance of decree. The proposed and approved plan of original plot 267 (original) shows the footprint of plan, which indicates that the unconstructed portion is the odd-shaped triangular portion, and left open (unconstructed) by Brigadier retired Muhammad Sadiq Khan. It was this triangular plot which was agreed to be sold. This portion was initially given No.267-B and Zeenia Satti requested for a change and vide letter dated 16.04.1997 the CDA complied. This portion was then given number 267-A, Street No.22, Sector E-7, Islamabad. We reproduce the relevant approved site plan which is as under:



The bifurcated plan has an eastern portion and a western portion. It was only western triangled portion of the plot which claimed to have trespassed some land unauthorizedly, and not the eastern portion; it is this portion of the land which is now assigned and given plot No.267-A and it is this portion out of which 100 square yards were excluded from the purview of performance decree by the Appellate Court and maintained by the High Court and by this Court. It is this portion regarding which it was agreed in the agreement that the entrance gate has to be re-adjusted and it is only this portion of the land regarding which separate applications were required for various amenities/services at the plot. Therefore, the identity of the portion of the plot regarding which performance decree was granted, cannot be disputed, irrespective of any number assigned to it. These questions came for consideration before the First Appellate Court while deciding appeals of the parties and in terms of para 14 of the said order the controversy as to the

inclusion of the said area (unauthorized portion) within 533 square yards, which portion of the land, under Capital Development Authority Rules cannot be built or constructed, was discussed. The points raised in para 6 regarding the lawful area of the plot agreed to be sold by Brigadier retired Muhmmad Sadiq Khan was highlighted and Court further discussed in para 14 and 15, which are reproduced as under:-

“14. Although specific performance is discretionary relief, but while deciding the fate of discretionary relief, Court has to consider the prevailing circumstances. Respondent No.1 was very well aware of the fact that out of the allotted plot, he is not authorized to raise construction to the extent of 100 Sq. Yards which were allotted to him subsequently on payment of Rs.7000/-. It is also relevant to mention that discretionary relief could have been refused if it was impossible for respondent No.1 to perform. In the instant case, appellant while filing suit has specifically pleaded that if 533 Sq. Yards could not be given to him, even then, he is ready to purchase plot to the extent of 433 Sq. Yards. In these circumstances of the case, I am of the view that learned Trial Court was not justified in refusing specific performance of agreement to sell to the appellant to the extent of 433 Sq. Yards. It is also to be considered that during this whole period, respondent No.1 remained enjoying the possession of land and also remained using Rs.4,00,000/- paid by appellant as earnest money, hence, payment of double amount to appellant can not redress his grievance.

15. In the light of afore-going discussion, I am not agreed to the conclusion arrived by the Trial Court regarding this issue and suit of the appellant is decreed to the extent of 433 Square Yards and he is duty bound to pay remaining consideration after deducting the consideration of 100 Yards allotted by CDA at a proportionate rate of Rs.1876.1726 per Square Yard. Appellant is directed to deposit remaining consideration amount of Rs.4,12,400/- in the Court and suit of the appellant for specific performance is decreed to the extent of 433 Square Yards excluding 100 Yards allotted by CDA on which construction can not be raised. Appellant is further directed to deposit remaining consideration of Rs.4,12,400/- in Court within 30 days of passing of judgment and decree. However, if plot sub Division has taken place and area of sub-divided part exceeds 433 Square-Yards then appellant is directed to pay further amount at the afore-referred rate as per increased area. Respondent No.1/his legal heirs are directed to alienate suit plot in favour of the appellant and thereafter, entitled to get the amount from the court. In case of failure, appellant may apply through the representative of the Court. With these observations, the findings of the Trial Court are set aside.”

33. By virtue of order dated 03.08.2022 it is said that Mrs. Zeenia Satti has been made to run from pillar to post, in fact, an apparent error floating on the surface as it was the decree holder who was running from pillar to

post for having fruits of decree including possession and were virtually denied by Mrs. Zeenia Satti when she misrepresented in obtaining order dated 03.08.2022 i.e. order under review.

34. It was all in haste and on account of unlawful insistence of Mrs. Zeenia Satti that the CDA was compelled on 03.08.2022 to execute the order dated 07.02.2020 as if it was meant for Mrs. Zeenia Satti's decree. This is a glaring and apparent mistake/error on the face of orders.

35. This aspect of the matter was also taken into account by the Islamabad High Court when the Regular Second Appeal was decided. Needless to mention that throughout Mrs. Zeenia Satti was the party to the proceedings. The High Court in terms of para 17 gave reasons as to the enforcement of the agreement, a part of which (100 square yards) could not have been performed.

36. Zeenia Satti has been contesting the litigation throughout and having complete understanding that the purported claim of gift on the portion that had formed part of performance decree is, in fact, an illusion. She otherwise had to sail and sink with the decree of performance as both donor and donee were aware of *lis pendens* regarding which an agreement has already been executed which was eventually decreed concurrently, by three courts, including this Court, in favour of Javed Akhtar.

37. Interestingly and surprisingly, the CDA on 03.08.2022 was compelled to handover possession of the said portion to Mrs. Zeenia Satti after issuing the ownership letter of house No.267-A measuring 501.11 square yards which in fact is a portion regarding which performance suit was decreed.

38. Thus, we are of the view that the order dated 03.08.2022 is an outcome of apparent error and should not have been passed in presence of the earlier orders which were passed in litigation wherein Javed Akhtar and his legal heirs were declared beneficiary and it is for them that the plot was being identified and ought to have been delivered to his legal heirs.

39. In consequence of the above, the order dated 03.08.2022 is set-aside all benefits drawn by Mrs. Zeenia Satti in compliance of such order dated 03.08.2022 are set-aside, withdrawn. In addition to above, the ownership letter allegedly issued during pendency of litigation by CDA in favour of Mrs. Zeenia Satti stands cancelled/withdrawn whereas that of the Javed Akhtar in respect of the said portion of the plot, i.e 267-A (Current number of western portion), Street No.22, Sector E-7, Islamabad stands restored. CDA may restore an alphabetical suffix of sub-divided plot, in terms of earlier ownership letter issued to Javed Akhtar and/or now his legal heirs, if deemed necessary. The executing Court shall proceed with the matter expeditiously in view of the above, for further compliance, if as and when required.

Civil Appeals No.428 to 430 of 2021: These Civil Appeals, as of right, have been filed under Article 185(2)(D) of the Constitution of the Islamic Republic of Pakistan, 1973, against common judgment dated 29.01.2021 of the Islamabad High Court, Islamabad, whereby Regular First Appeals filed by respondent No.1 were allowed by setting aside the consolidated judgment dated 09.10.2020 passed by the Civil Judge, Islamabad-West.

40. Fact necessary for the adjudication of the instant appeals are that three suits were filed; two suits for declaration and permanent injunction were filed by Abdul Karim Niazi, the present appellant against Mrs. Zeenia Satti and CDA, the present respondents, whereas, one suit for possession,

mesne profits and permanent injunction was filed by Mrs. Zeenia Satti, respondent No.1 against the present appellant. All these suits were filed in respect of House No.267-A, (current number assigned by CDA to a portion of main plot 267) Street No.22, Sector E-7, Islamabad.

41. As the property is the same in all the three suits, therefore, the suits were consolidated and *vide* consolidated judgment and decree dated 09.10.2020 passed by the Civil Judge, Islamabad-West, the suit filed by respondent No.1 was dismissed, however, the suits filed by the present appellant were decreed.

42. Feeling aggrieved of the said judgment and decree, Mrs. Zeenia Satti, respondent No.1 filed Regular First Appeals (RFA Nos.336, 337 and 342/2020) before the Islamabad High Court, Islamabad, which were allowed and the consolidated judgment dated 09.10.2020 was set aside through the impugned judgment dated 29.01.2021. Hence these civil appeals filed by the present appellant before this Court.

43. We have heard the learned counsel for the appellant, respondent No.1 (Mrs. Zeenia Satti), who appeared in person and counsel for Capital Development Authority and perused the material available on record.

44. The learned counsel for the appellant argued that the appellant is the owner of House No.267-A, Street No.22, Sector E-7, Islamabad. He further argued that respondent No.1 is the maternal aunt of the appellant, who orally gifted the said property to him and his brother, namely, Abdul Azeem Khan Niazi. He next contended that the impugned judgment is the result of misreading and non-reading of evidence and is liable to set at naught.

45. Respondent No.1 argued that she never gifted the said property to the appellant and his brother and the possession of the said property was forcefully taken from her. She further argued that the impugned judgment is in accordance with law.

46. The learned High Court non-suited the appellant mainly on two grounds; firstly that the suits filed by the appellant were not maintainable as the same were barred by law and secondly that the oral gift, on which reliance has been placed, has not been proved by the appellant in accordance with law.

47. As regards the filing of second suit on the same cause of action and between the same parties is concerned, it is to be noted that the appellant filed first suit for declaration and permanent injunction on 27.08.2015, on the same cause of action, which was dismissed for non-prosecution on 02.12.2015 and the appellant did not challenge the same further, which has attained finality. The judgment of the Trial Court is totally silent about this aspect of the matter. This issue should have been decided by the Trial Court, which has escaped from the notice of the Trial Court. However, the learned High Court after a detailed discussion and deliberation held that the second suit on the same cause of action and between the same parties was not maintainable as barred by law. We agree with such findings of the High Court.

48. As regards the oral gift of the property, on which reliance has been placed by the appellant is concerned, we have noted that findings were well reasoned and not to be interfered with.

49. Considering the above facts and circumstances of the case, the learned High Court has rightly non-suited the appellant since he could not prove his

case on the pleas, which have been raised by him in support of his claim with regard to the subject property. Even otherwise, the ingredients of a valid gift, i.e., offer, acceptance and delivery of possession have not been fulfilled as per its requirement. Interestingly, the title of the donor herself, in view of findings in the review order above passed in Civil Review Petition No.56/2022 has not been proved and the transactions were made to overcome the performance decree passed concurrently by four courts.

50. For the foregoing discussion, Criminal Review Petition No. 56 of 2022 is allowed in the aforesaid terms and the order dated 03.08.2022 is set-aside. Civil Appeals No.428 to 430 of 2021 are dismissed.

51. However, it is clarified that this is without prejudice to the rights and interest of the legal heirs of Javed Akhtar, who are the decree-holders.

Judge

Judge

Judge

Announced in open Court on 14 May, 2026 at Islamabad.

Judge

Approved for Reporting
[M. Asif Bhatti/Simra Sohail, LC]